

Court No. - 39

Case :- WRIT - C No. - 25386 of 2024

Petitioner :- Raju

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And
Another

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Alok Mishra

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Donadi Ramesh,J.

1. Learned counsel for the respondent prays for and is granted five days time to complete his instructions.
2. Put up this case as fresh on 13.08.2024.

Order Date :- 6.8.2024

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(Donadi Ramesh,J.) (S.D. Singh,J.)

Court No. - 40

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And
Another

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Alok Mishra, Pramod Kumar Dwivedi

Hon'ble Shekhar B. Saraf, J.

Hon'ble Vipin Chandra Dixit, J.

1. Heard learned counsel appearing on behalf of the petitioner, Shri Pramod Kumar Dwivedi, learned counsel appearing on behalf of complainant and learned counsel appearing on behalf of Electricity Department.

2. This is a writ petition under Article 226 of the Constitution of India wherein the petitioner is aggrieved by the alleged illegal permanent disconnection of the electricity supply in the premises of the petitioner. The above disconnection was carried out on 11.06.2024 without any notice whatsoever having been given to the petitioner.

3. Learned counsel appearing on behalf of the petitioner submits that there is no allegation of non payment of bills and the reason for disconnection is not known to the petitioner.

4. Per contra, learned counsel appearing on behalf of the Electricity Department submits that an enquiry was carried out with regard to the premises of the petitioner and it was found that the electricity supplied to the petitioner, has been used by the petitioner in another premises. He further submitted that since the same was an unauthorized used, the electricity connection was disconnected. However, learned counsel appearing on behalf of the respondents fairly submitted that no show cause notice was given to the petitioner and this disconnection was done due to the unauthorized used by the petitioner.

5. Upon due consideration of the facts and circumstances, we are of the view that the Uttar Pradesh Electricity Supply Code, 2005 does not allow disconnection of this nature without any notice whatsoever being given to the petitioner. In light of the same, the

electricity connection that has been disconnected permanently, is directed to be reinstalled within a period of seven days from date at the premises of the petitioner.

6. We make it clear that we have not gone into the merits of the case and electricity department shall be at liberty to issue show cause notice to the petitioner and thereafter act in accordance with law.

7. With the above direction, this writ petition is disposed of.

8. After the aforesaid order that has been passed, Shri Pramod Kumar Dwivedi, learned counsel appearing on behalf of complainant submits that he has filed an impleadment application.

9. Since we have already passed the order directing the electricity department to restore the connection and take action in accordance with law, nothing further needs to be done. Accordingly, the impleadment application is disposed of as infructuous.

10. The electricity department is directed to take action on the complaint filed by complainant in accordance with law and also allow him to present his case.

11. It is to be noted that in the present case, we have directed the reinstallation of the permanent connection, as permanent disconnection was done without the authority of law and in an arbitrary manner without following the due process of law.

12. We make it clear that this order passed by us today shall not in any way prevent the electricity department from taking action against the petitioner in accordance with law.

Order Date :- 15.10.2024

Sharad/-

(Vipin Chandra Dixit, J.) (Shekhar B. Saraaf, J.)